



213

**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

**CRWP-5969-2026
DECIDED ON: 05.06.2026**

BALJINDER SINGH ALIAS RANCH

.....PETITIONER(S)

VERSUS

STATE OF PUNJAB AND ORS

.....RESPONDENT(S)

CORAM: HON'BLE MR. JUSTICE SANDEEP MOUDGIL

Present: Ms. Neha Jain, Advocate
for the petitioner(s)

Mr. Rajiv Verma, Addl. AG. Punjab

SANDEEP MOUDGIL, J (ORAL)

1. The jurisdiction of this Court has been invoked under Article 226 of the Constitution of India for issuance of an appropriate writ, order or direction, especially a writ in the nature of certiorari for quashing the order dated 23.04.2025 (Annexure P-3) passed by respondent No.4- Commissioner-cum-District Deputy Magistrate, Bathinda, whereby the request for grant of 8 weeks parole has been rejected wrongly and illegally, thus the same needs to be set aside. Further a prayer has been made for the issuance of a writ in the nature of mandamus, directing the respondents to release the petitioner on parole for a period of eight weeks under the provisions of the Punjab Good Conduct Prisoners (Temporary Release) Act, 1962, to enable him to meet and take care of his ailing mother, who is suffering from various ailments and requires his care, support, and assistance, in view of the peculiar facts and circumstances of the present case.

2. Learned counsel for the petitioner submits that there is no other family member available to look after the petitioner's mother. The prayer for grant of parole for a period of eight weeks has been made solely on humanitarian and family grounds, as the petitioner wishes to take care of his 73-year-old mother. It is contended that she is suffering from multiple age-related ailments and requires constant care, attention, emotional support, and the physical presence of the petitioner, who is her only son.

3. Learned State counsel submits that the denial of release of the petitioner on parole on account of the fact that the petitioner was involved in another offence while on bail, wherein five pistols of .32 bore along with 10 live cartridges were allegedly recovered from him. The present case also pertains to the recovery of a commercial quantity of narcotic substances.

4. Learned State counsel has produced two separate replies by way of affidavits. The first affidavit is of Jasjyot Singh, PPS, Deputy Superintendent of Police, Talwandi Sabo, dated 04.06.2026, and the same is taken on record. In the said affidavit, the same reasons have been reiterated, with a further addition in paragraphs 5 and 6 that the release of the petitioner may cause a threat to State security and public peace, as he is involved in an FIR under the NDPS Act involving recovery of a commercial quantity of narcotics. It has further been stated that his involvement in another case under the Arms Act arising out of FIR No. 84 dated 07.09.2025, registered under Sections 25(7)(8), 54 and 59 of the Arms Act at Police Station Sadar Malout, is also a ground for denying the relief sought by the petitioner.

5. The second affidavit, filed by Hemant Sharma, Superintendent, Central Jail, Bathinda, on behalf of respondents No. 1, 2 and 5, is also taken on record. The said affidavit is on similar lines and places on record the custody

certificate of the petitioner dated 26.05.2026. As per the said certificate, the petitioner has undergone a total sentence of 2 years and 25 days, including remission. However, the actual period undergone since the date of conviction is 8 months and 4 days, i.e., less than one year.

6. Having given thoughtful consideration to the aforesaid facts emerging from the submissions of the parties and upon perusal of the record, this Court is of the considered view that the petitioner's mother is the sole surviving family member and is presently unattended. This fact has not been denied by the State in its affidavit. Furthermore, the assertion regarding her age-related ailments has also not been specifically controverted. It is for these reasons that the petitioner seeks parole for a period of eight weeks.

7. In view of the above, there is no other family member available to look after the petitioner's 73-year-old mother, who is presently suffering from multiple age-related ailments and requires constant care, attention and medical support and the said fact has not been disputed by the State. Furthermore, the petitioner has remained in custody for more than two years, which is also a relevant factor weighing with this Court while considering the present application.

8. Accordingly, the petitioner is directed to be released on parole for a period of eight weeks commencing from 06.06.2026, subject to furnishing the requisite bonds to the satisfaction of the Chief Judicial Magistrate/Duty Magistrate concerned.

9. The petitioner shall surrender before the Jail Authorities on or before 5:00 PM on 01.08.2026.

05.06.2026

Meenu

Whether speaking/reasoned :Yes/No

Whether reportable :Yes/No

(SANDEEP MOUDGIL)
JUDGE